DIFC Courts Order No. 4 of 2021 in respect of the Digital Economy Court Division

JANUARY 27, 2022 COURT ADMINISTRATIVE ORDERS

I, Zaki Azmi, Chief Justice of the Dubai International Financial Centre Courts,

Having reviewed –

Dubai Law No. 5 of 2021 in respect of the establishment of the DIFC;

Dubai Law No. 12 of 2004 in respect of the Judicial Authority at the DIFC, as amended;

DIFC Law No. 10 of 2004 in respect of the DIFC Courts (**"DIFC Court Law"**);

And Whereas –

(A) The DIFC Court Law authorises the Chief Justice of the DIFC Courts:

(i) "set up circuits and divisions of the DIFC Court (Article 14(1)(a); and

(ii) "where he considers it appropriate, to set up and administer Tribunals of the DIFC Courts, and to authorise rules for their administration which shall be set out in the Rules of Court" (Article 14(3));

(B) Pursuant to Article 31 The Chief Justice shall recommend for enactment by the President rules of procedure to be known as the Rules of Court (the **"RDC"**) in relation to any proceedings before the DIFC Court or a tribunal of the DIFC Court.

Now I hereby order and direct, as follows:

(1) In accordance with the DIFC President's announcement on 14 December 2021 to set up and establish a new division to be named as the Digital Economy Court (**"DEC"**) Division all cases that are registered under the DEC Division shall be under the category of DEC cases on the Case Management System (**"CMS"**).

(2) I authorise the creation of a DEC Rules Committee to propose the DEC Rules' part of the RDC for the administration of the DEC which shall be enacted and published as part of the RDC pursuant to Article 31 of the DIFC Courts Law, such Rules shall regulate the conduct of proceedings in the DEC Division.

(3) The DEC Division shall also have a Working Group that will include industry experts varying from digital economy stakeholders to lawyers and technology specialists.

Effect:

(4) This Order shall take effect from 14 December 2021.

Chief Justice Zaki Azmi
Dated: 27 January 2022